

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOSHUA EILENBERG,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER RALPH
GIORDANO, Shield No. 31691, POLICE OFFICER
SAEED RUBAID, Shield No. 20977, SERGEANT
BEKIM BECAJ and POLICE OFFICERS JOHN DOES
#1-4 (names and number of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates King County
as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
August 30, 2018

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: **City of New York**, 100 Church Street, NY, NY 10007
Police Officer Ralph Giordano, Shield No. 31691, 72nd Precinct, 830 4th Avenue,
Brooklyn, NY 11232
Police Officer Saeed Rubaid, Shield No. 20977, 72nd Precinct, 830 4th Avenue,
Brooklyn, NY 11232
Sergeant Bekim Becaj, 72nd Precinct, 830 4th Avenue, Brooklyn, NY 11232

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff JOSHUA EILENBERG, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 10, 2017 at 3:00 pm plaintiff was lawfully present inside of the 72nd Precinct, 830 4th Avenue, Brooklyn, New York when the defendant NYPD officers, falsely arrested/ imprisoned plaintiff, negligently and intentionally inflicted emotional distress upon plaintiff, were deliberately indifferent to plaintiff's medical needs by refusing him access to his medication or treatment from a medical professional, maliciously prosecuted plaintiff with zero evidence he committed a crime, and denied him the right to due process/ fair trial, all without probable cause or legal justification. Plaintiff was unlawfully seized and detained at the 72nd Precinct and at Kings County Central Booking for more than 24 hours before he was arraigned in Kings County Criminal Court on January 11, 2017 and initially charged with felony crimes he did not commit and for which the officers lacked an objective factual basis to accuse him of committing. While plaintiff was at the 72nd Precinct plaintiff suffered a severe asthma attack, chest pains, and a severe anxiety attack which required plaintiff to receive immediate medical attention and he was transported to Lutheran Hospital whereat he received medical treatment for his ailments. Plaintiff appeared in Kings County Criminal Court on January 11, 2017 for arraignment and was released on his own recognizance at arraignment. By Decision and Order, dated June 5, 2017, all

charges brought against plaintiff were dismissed by the Court as a matter of law. The criminal charges were dismissed and sealed on June 6, 2017 after plaintiff had already appeared in Criminal Court to address the charges brought against him on 3 occasions and after the Court issued a written decision dismissing the charges because the officers lacked probable cause to arrest and prosecute plaintiff.

2. While plaintiff was in the custody of the police officers at the 72nd Precinct he advised the officers of his medical ailments and that he needed to take his medication. However, the defendants refused to permit him to take his medication. As a result, plaintiff missed three doses of his medication which caused him to become dizzy and caused his head to spin because he was going through withdrawal from his psychiatric medications that he was supposed to be taking. Plaintiff gave the officers his list of medications that he needed to take, which he had written on a piece of paper in his wallet, but the officers ripped up the paper containing the list and ignored plaintiff. Eventually, plaintiff suffered from an anxiety attack, asthma attack and chest pains while he was detained at Kings County Central Booking and he was transported to Lutheran Hospital for treatment of those ailments. However, plaintiff was not given the psychiatric medications he required while he was at Lutheran Hospital because the list of the medications he required was ripped up by the police officers. As a result, plaintiff was not well psychiatrically for approximately 3 days after he was released from custody. During that time period plaintiff was anxious, depressed, disoriented, and suffered severe emotional distress. Plaintiff could not drive or function very well during that time period. He missed three shifts at his security job and lost income at that job in the amount of \$2400 and missed approximately 60 hours driver and lost income at that job in the amount of approximately \$3,000.

3. Plaintiff was deprived of his constitutional and common law rights when the individual defendants falsely arrested and imprisoned plaintiff, were deliberately indifferent to plaintiff's medical condition, denied plaintiff the right to due process, maliciously prosecuted plaintiff, unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and negligently and/or intentionally inflicted emotional distress upon plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the common law and the laws of the State of New York.

PARTIES

4. Plaintiff Joshua Eilenberg is a resident of Brooklyn, New York.

5. Defendant Police Officer Ralph Giordano, Shield No. 31691, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. On the date of the subject incident, Police Officer Ralph Giordano, Shield No. 31691, was assigned to the 72nd Precinct.

7. Defendant Police Officer Ralph Giordano, Shield No. 31691, is being sued in his individual and official capacity.

8. Defendant Police Officer Saeed Rubaid, Shield No. 20977, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

9. On the date of the subject incident, Defendant Police Officer Saeed Rubaid, Shield No. 20977, was assigned to the 72nd Precinct.

10. Defendant Police Officer Saeed Rubaid, Shield No. 20977, is being sued in his individual and official capacity.

11. Defendant Sergeant Bekim Becaj is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

12. On the date of the subject incident, Defendant Sergeant Bekim Becaj was assigned to the 72nd Precinct.

13. Defendant Sergeant Bekim Becaj is being sued in his individual and official capacity.

14. New York City Police Officers John Does # 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

15. Police Officers John Does # 1-4 are being sued in their individual and official capacities.

16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

17. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

20. Defendant CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law for plaintiff's claims on or about September 26, 2017.

21. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. By way of background, on January 9, 2017 at approximately 10:00 pm plaintiff Joshua Eilenberg noticed a woman standing next to a disabled vehicle in the vicinity of the Gowanus Expressway and Prospect Expressway, Brooklyn, NY.

25. The woman appeared to be very cold standing on the side of the dark road and plaintiff was certain that she needed assistance.

26. Therefore, as a good Samaritan plaintiff pulled his vehicle to the side of the road and attempted to assist the woman.

27. The woman explained to plaintiff that her car broke down while she was driving and she did not know what to do.

28. Plaintiff attempted to charge the woman's car battery or to otherwise get her vehicle running, but despite his efforts plaintiff was unable to get the woman's vehicle running.

29. Ultimately, plaintiff called 911 to report the disabled vehicle and to request assistance for the woman.

30. Defendants responded to the scene of the disabled vehicle, and thanked plaintiff for helping the woman when they arrived.

31. Defendants continued assisting the woman, but before plaintiff left the scene he asked defendants whether they could give him a PBA card.

32. Defendants apologized to plaintiff and advised plaintiff that they did not have any cards with them because, according to defendants, they usually only gives PBA cards to close friends and family.

33. However, defendants told plaintiff that they would have PBA cards the following day at the 72nd Precinct and would give plaintiff a card in exchange for \$100 if plaintiff came to the precinct to pick up the card.

34. Pursuant to defendants' instructions, on January 10, 2017 at 3:00 pm plaintiff arrived at the 72nd precinct and attempted to purchase the PBA card from defendants.

35. However, instead of selling plaintiff the PBA card, when plaintiff asked defendants for the PBA card, defendants unlawfully handcuffed, falsely arrested/ imprisoned plaintiff without probable cause.

36. At no time did plaintiff commit a crime or violate the law in any way, nor did the defendants possess an objective factual basis to believe he violated the law.

37. Without any factual or legal basis, the defendants accused plaintiff of committing the crime of Bribery.

38. The defendants unlawfully fingerprinted, photographed, and detained plaintiff in a holding cell at the precinct for numerous hours.

39. While plaintiff was in the custody of the defendants at the 72nd Precinct he advised the defendants of his medical ailments and that he needed to take his medication.

40. However, the defendants refused to permit him to take his medication. As a result, plaintiff missed three doses of his medication which caused him to become dizzy and caused his head to spin because he was going through withdrawal from his psychiatric medications that he was supposed to be taking.

41. Plaintiff gave the defendants a list of medications that he needed to take, which plaintiff had written on a piece of paper in his wallet, but the officers ripped up the paper containing the list of medications and ignored plaintiff.

42. Defendants refused to permit plaintiff to take his medications while in custody, which caused plaintiff to become ill and also caused plaintiff's anxiety to increase dramatically.

43. Plaintiff began to suffer from chest pains and he had an asthma attack at approximately 1:00 am on January 11, 2017 while he was at Kings County Central Booking.

44. Plaintiff suffered from an anxiety attack, asthma attack and chest pains while he was detained at Kings County Central Booking and he was transported to Lutheran Hospital for treatment of those ailments.

45. However, plaintiff was not given the proper psychiatric medications he required while he was at Lutheran Hospital because the list of the medications plaintiff was supposed to take was ripped up by the defendants earlier that night.

46. As a result, plaintiff was not well psychiatrically for approximately 3 days after he was released from custody.

47. During that time period plaintiff was anxious, depressed, disoriented, and suffered severe emotional distress.

48. Plaintiff could not drive or function very well during that time period. He missed three shifts at his security job and lost income at that job in the amount of \$2400 and missed approximately 60 hours driver and lost income at that job in the amount of approximately \$3,000.

49. Plaintiff was unlawfully detained at the 72nd Precinct and Kings County Central Booking for over 24 hours and was arraigned in Kings County Criminal Court on January 11, 2017 and released on his own recognizance at arraignment.

50. On January 11, 2017, plaintiff was arraigned and charged on a felony complaint with Bribery in the Third Degree (PL 200.00) and Obstructing Governmental Administration in the Second Degree (PL 195.05).

51. On February 8, 2017, the People moved to dismiss the count of Bribery in the Third Degree, thereby converting the accusatory instrument to a misdemeanor complaint.

52. Plaintiff then moved to dismiss the criminal charges brought against him, but on May 1, 2017, the People filed a superseding information and statement of readiness.

53.]The superseding information contained the same false factual allegations that were initially alleged by defendants and included an additional charge of Compounding a Crime (PL 215.45(1)(b)).

54. On June 6, 2017 the Court granted plaintiff's motion to dismiss and issued a written decision and order that dismissed and sealed the remaining misdemeanor charges for facial insufficiency.

55. The unlawful false arrest, false imprisonment, denial of the right to due process, unlawful seizure of plaintiff's children, and negligent and/or intentional infliction of emotional distress upon of plaintiff by the individually named defendants caused plaintiff to sustain severe psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to abuse of process and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

66. Defendants lacked probable cause to search plaintiff.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

71. Plaintiff repeats and realleges paragraphs 1 through 70 as if fully set forth herein.

72. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

73. Defendants commenced and continued a criminal proceeding against plaintiff.

74. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

75. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

76. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Right to Due Process/ Fair Trial

79. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 78 with the same force and effect as if fully set forth herein.

80. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

81. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

82. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

83. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

84. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION**Violation of Plaintiff's Fourth Amendment and Fourteenth
Amendment Rights
Deliberate Indifference to Medical Needs**

87. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 86 with the same force and effect as if fully set forth herein.

88. By reason of the foregoing, and by failing to provide medical and mental health treatment, and by failing to provide the proper medications, and/or exhibiting deliberate indifference to plaintiff's rights by not acting on information which indicated that unconstitutional acts were occurring, the defendants deprived plaintiff of rights, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. § 1983, including, but not limited to, rights guaranteed by the Fourth, and Fourteenth Amendments of the United States Constitution. Defendants acted at all relevant times hereto willfully, wantonly, maliciously, and/or with such reckless disregard of consequences as to reveal a conscious indifference to the clear risk of death or serious injury to plaintiff that was not reasonable. As a direct and proximate result of these violations of plaintiff's constitutional rights, he suffered the damages hereinbefore alleged.

89. Defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their employment as NYPD officers, agents, employees, and/or contracted personnel. Said acts by Defendants were, without authority of law, and in abuse of their powers. Said Defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 and by the Fourth, and Fourteenth Amendments to the United States Constitution.

SEVENTH CAUSE OF ACTION**Failure to Intervene**

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

92. Defendants failed to intervene to prevent the unlawful conduct described herein.

93. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

NINTH CAUSE OF ACTION

Negligence

98. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. Defendants owed a duty of care to plaintiff.

Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, maliciously prosecuting, and being negligently indifferent to plaintiff's medical needs.

100. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

101. All of the foregoing occurred without any fault or provocation by plaintiff.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

TENTH CAUSE OF ACTION**Negligent Infliction of Emotional Distress**

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

105. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct..

JURY DEMAND

108. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

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PRAYER FOR RELIEF

WHEREFORE, plaintiff Joshua Eilenberg demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
August 30, 2018

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 30, 2018

/s/

DAVID M. HAZAN, ESQ.